

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
STEVEN ORTIZ,

Plaintiff(s),

Plaintiff designates
Bronx County
the place of trial

-against-

The basis of venue is
site of occurrence

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER EVAN LAVIN (TAX ID # 954052) and
NEW YORK CITY POLICE LIEUTENANT MAHONEY,

Defendant(s).
-----X

SUMMONS

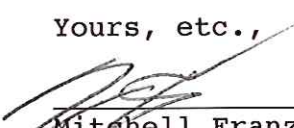
Plaintiff resides at:
2786 Bainbridge Ave.
Bronx, NY 10458

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
April 29, 2015

Yours, etc.,



Mitchell Franzblau, Esq.
BELOVIN & FRANZBLAU, LLP
Attorneys for Plaintiff(s)
Office & P. O. Address
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

Defendant(s) Address(es):

CITY OF NEW YORK
100 Church Street
New York, NE 10007
NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)
52nd Precinct, 3016 Webster Avenue
Bronx, New York
NEW YORK CITY POLICE LIEUTENANT MAHONEY
52nd Precinct, 3016 Webster Avenue
Bronx, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
STEVEN ORTIZ,

VERIFIED COMPLAINT

Plaintiff(s),

Index No:

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER EVAN LAVIN (TAX ID # 954052) and
NEW YORK CITY POLICE LIEUTENANT MAHONEY,

Defendant(s).

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Plaintiff, by and through his attorneys, **BELOVIN & FRANZBLAU, LLP**, as and for a verified complaint, respectfully allege as follows:

1. That all the times hereinafter mentioned, plaintiff was, and still is, a resident of the City and State of New York, County of Bronx.

2. At all the times herein, the defendant, **CITY OF NEW YORK**, was, and still is a duly licensed Municipal Corporation authorized to transact business in the City of New York, County of Bronx.

3. Upon information and belief, the defendant, **CITY OF NEW YORK**, employed **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, who were herein duly employed and acting New York City Police Officers (or other ranking officers) of the City of New York, County of Bronx, State of New York and upon information and belief, the defendants, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK**

CITY POLICE LIEUTENANT MAHONEY, were and still are, at all times herein mentioned, residents of the City and State of New York.

4. Upon information and belief, that all times herein, the defendants, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, were and still are employees of The City of New York Police Department as Police Officers (or other ranking officers), and were at all times herein acting within the furtherance and scope of their employment with **THE CITY OF NEW YORK**. The defendant, **CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendants, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, pursuant to the doctrine of respondeat superior. **THE CITY OF NEW YORK** expressly and implicitly condoned all of the actions of **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, set forth herein and hereinafter.

5. Upon information and belief, **THE CITY OF NEW YORK** at all times herein, condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, as herein and hereinafter set forth.

6. Upon information and belief, each and all of the acts of the defendants alleged herein were done by defendants, and each of

them, both as individuals, and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York and the County of Bronx, and under the authority of their office as Police Officers for New York City.

7. Upon information and belief, that on or about September 18, 2014 at approximately 10:00 p.m. across the street from 2786 Bainbridge Avenue, City and State of New York, County of Bronx, although the plaintiff was lawfully and properly at said location, he was forcibly, violently and unlawfully, stopped, frisked, and searched in a demeaning manner and assaulted and battered in front of the public, threatened and illegally placed under arrest and imprisoned by the defendants, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, working for and on behalf of **THE CITY OF NEW YORK**. In addition, shortly before the aforesaid search and arrest, the same officer had searched plaintiff at the same location and advised plaintiff he was free to go, upon which plaintiff left and then returned at which time the officer again searched plaintiff and then arrested plaintiff as described above.

8. Upon information and belief the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, unlawfully accused the plaintiff, **STEVEN ORTIZ**, of crimes and violations and the defendants became abusive toward the plaintiff without any justification and said accusations were completely false and plaintiff was unlawfully placed under arrest.

9. Upon information and belief, the plaintiff, **STEVEN ORTIZ**, was taken to the New York City Police Department 52nd Precinct and was held, under arrest, and imprisoned from approximately September 18, 2014 at approximately 10:00 p.m. through September 19, 2014 at approximately 12:00 midnight.

10. Upon information and belief, during the time the plaintiff was unlawfully held at the aforesaid locations, plaintiff was otherwise forced to undergo great emotional and mental anguish and physical harm, and loss of liberty and freedom and was kept and imprisoned in various cells and handcuffed and subjected to a humiliating strip search.

11. Upon information and belief, that on September 19, 2014 at 12:00 midnight, the plaintiff was released and advised that he was free to go.

12. Upon information and belief, all criminal charges were, or will be, dismissed against the plaintiff in connection with, or in support of the arrest, search, seizure and imprisonment to which plaintiff was subject as set forth herein.

13. Prior to the commencement of this action, on the 16th day of December, 2014 a Notice of Claim was duly served herein on the defendant. To date, defendant has failed and neglected to request a 50h Hearing and more than thirty days have expired since the filing of the Notice of Claim, thereby deeming said 50h Hearing waived, and the defendant has failed and neglected to adjust the claim. This action is timely brought.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID
954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY ON BEHALF
OF PLAINTIFF, STEVEN ORTIZ

14. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "13", above as if fully set forth herein.

15. Upon information and belief, on or about September 18, 2014 at approximately 10:00 p.m., while on the sidewalk, across the street from 2786 Bainbridge Avenue, City and State of New York, County of Bronx, while the plaintiff was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX**

ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY, approached the plaintiff, without probable cause, searched and frisked plaintiff and detained him. This search was conducted in a violent and abusive manner during the course of which defendant probed and cuffed and verbally assaulted, battered and abused plaintiff with the intent and purpose of harming, humiliating and embarrassing plaintiff in the presence of the public generally, and particularly, the people present at the scene.

16. Upon information and belief, after searching plaintiff's person, as above described, which search did not reveal any incriminatory or dangerous articles defendant placed the plaintiff in handcuffs and compelled the plaintiff to accompany them to and detained at the following location: the 52nd Precinct, Bronx, New York. Upon information and belief, after searching plaintiff and finding no contraband, defendants maliciously claimed they found narcotics on plaintiff and then subsequently maliciously and fraudulently charged plaintiff with possession of narcotics.

17. Upon information and belief, plaintiff was held at the above locations and imprisoned therein, and detained, from approximately September 18, 2014 at approximately 10:00 p.m. through September 19, 2014 at approximately 12:00 midnight. Said imprisonment and confinement was all without probable cause or justification and was all precipitated by the unlawful and improper charges and actions

of the New York City Police Department and their employees and said actions of defendants were done intentionally and with malice.

18. Upon information and belief, all criminal charges pressed against plaintiff in connection with, or in support of the arrest, search, seizure, and imprisonment to which plaintiff was subjected as set forth herein and were, or will be, dismissed, were unjustified and said confinement was, at all times, against the will of the plaintiff. That plaintiff was aware of said imprisonment and confinement and did not consent thereto. The confinement and imprisonment was not privileged.

19. Upon information and belief, said confinement and imprisonment was without probable cause, was improper and without justification and the plaintiff, **STEVEN ORTIZ**' movements were restricted. This confinement, imprisonment and restriction of the plaintiff's movement was against his will and plaintiff was aware of said confinement, restriction and imprisonment.

20. Upon information and belief, by the reason of the aforesaid **FALSE IMPRISONMENT** of the plaintiff, **STEVEN ORTIZ**, by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of enjoyment of life, and is entitled to punitive damages, against **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, and was

otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID
954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY ON BEHALF
OF PLAINTIFF, STEVEN ORTIZ**

21. Plaintiff repeats, reiterates and realleges each and every allegation number "1" through "20" above, as if fully set forth herein.

22. Upon information and belief, on or about September 18, 2014 at approximately 10:00 p.m., while on the sidewalk, across the street from 2786 Bainbridge Avenue, City and State of New York, County of Bronx, while the plaintiff was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY**, did falsely arrest the plaintiff.

23. Upon information and belief, at all times herein, the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY**, did assert proper legal authority to detain and arrest the plaintiff, and the plaintiff reasonably believed that the defendants did have the power to hold him against his will.

24. Upon information and belief, said arrest was without probable cause, improper and without justification, and the plaintiff, **STEVEN ORTIZ'**, movement was restricted and confined.

25. Upon information and belief, the aforesaid arrest and restriction of plaintiff's movements was against his will and plaintiff was aware of said arrest and restrictions and confinement against his will.

26. Upon information and belief, said arrest was improper, unlawful and without proper justification and without probable cause.

27. Upon information and belief, at all times herein, the aforesaid false arrest by the defendants was made with malice and the defendants did intend to falsely arrest the plaintiff.

28. Upon information and belief, by reason of the **FALSE ARREST** of the plaintiff, **STEVEN ORTIZ**, by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life and is entitled to punitive damages against **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, and was otherwise damaged all an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS CITY OF
NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)
and NEW YORK CITY POLICE LIEUTENANT MAHONEY ON BEHALF OF PLAINTIFF,
STEVEN ORTIZ**

29. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "28", above as if fully set forth hereinafter.

30. Upon information and belief, the defendant, **CITY OF NEW YORK**, owed a duty to the general public to sufficiently train and educate their police officers.

31. Upon information and belief, the aforesaid police officers, defendants, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY**, were not sufficiently trained and experienced in carrying out their duties as New York City Police Officers. In addition, upon information and belief, the defendant, **CITY OF NEW YORK**, was further negligent in hiring and retaining **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY**, as employees despite having actual and or constructive notice that said employees were unfit and not qualified to carry out their duties as Police Officers, and possessed violent propensities.

32. Upon information and belief, that **THE CITY OF NEW YORK** was negligent, careless and reckless in not sufficiently training their police officers and that all of the aforesaid defendants did not perform a proper investigation before committing the aforesaid

conduct, and in negligently hiring and retaining defendants, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, and the defendants were otherwise negligent.

33. That as a direct and proximate result of the defendant, **THE CITY OF NEW YORK's** negligence, including, but not limited to: Their failure to properly and adequately train their police officers, and of the negligence of the defendants, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, all of the aforesaid tortious conduct was committed upon the plaintiff causing him serious and severe physical and emotional injuries.

34. By reason of the aforesaid **NEGLIGENCE** of defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, the plaintiff, **STEVEN ORTIZ**, did suffer shock, mental distress, emotional stress, material loss, emotional damages, loss of esteem, humiliation, loss of enjoyment of life, loss of liberty, loss of time and physical damage, all in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY ON BEHALF OF PLAINTIFF, STEVEN ORTIZ

35. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "34", above as if fully set forth hereinafter.

36. Upon information and belief, during all the times herein, the individual defendants, and each of them, separately and in concert, acted under the cover of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of Bronx, City of New York.

37. Upon information and belief, each of the defendants, separately and in concert engaged in illegal conduct herein before and herein after mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States. The defendants, in imprisoning and arresting the plaintiff deprived the plaintiff of her constitutional rights and annuities secured by the United States Constitution and freedom from illegal seizure, illegal search, fear from legal detention, coercion and intimidation, all secured by the Constitution of the United States and 42 United States Code Section 1983. The defendants

acted knowingly and purposely with the specific intention to deprive the plaintiff of her aforementioned rights.

38. Upon information and belief, the actions and conduct described herein by **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, and the New York City Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, constituted a continuing pattern of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, and said misconduct and official unconstitutional policy caused plaintiff to be subjected to and deprived her constitutional rights.

39. Upon information and belief, at all times herein, the defendant, **CITY OF NEW YORK**, condoned the above unconstitutional conduct by its police officers as is demonstrated and documented by the substantial and reoccurring amount of 42 USC § 1983 claims filed against the **CITY OF NEW YORK** and this official New York City unconstitutional pattern of behavior has been demonstrated on several occasions by both the New York City Police and other investigations

and the above actions by the New York City Police Department Police Officers were all part of the CITY OF NEW YORK's policy of "Stop and Frisk", whereby officers, at the direction of the CITY OF NEW YORK, were advised to stop and frisk various people based on inappropriate physical traits.

40. Upon information and belief, as a direct and proximate result of the aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

41. Plaintiffs hereby demand compensation and punitive damages together reasonable attorney's fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

AS AND FOR FIFTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID
954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY ON BEHALF
OF PLAINTIFF, STEVEN ORTIZ

42. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "41", above as if fully set forth hereinafter.

43. Upon information and belief, on or about September 18, 2014 at approximately 10:00 p.m. across the street from 2786 Bainbridge Avenue, City and State of New York, County of Bronx, while

the plaintiff was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, civilly assaulted the plaintiff, **STEVEN ORTIZ**.

44. Upon information and belief, at all times herein, the defendant, **CITY OF NEW YORK**, and the defendants, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, placed the plaintiff, **STEVEN ORTIZ**, in imminent fear of violent contact. Upon information and belief, said officers placed handcuffs on plaintiff that were excessively tight and subjected plaintiff to an improper and humiliating strip search.

45. Upon information and belief, the defendants, **CITY OF NEW YORK**, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, acts were intentional and made with malice all against the plaintiff, **STEVEN ORTIZ**.

46. Upon information and belief, at all times herein, the plaintiff was aware of the defendants' actions, and the plaintiff was aware of the fear and threat of the imminent offensive violent contact.

47. Upon information and belief, by reason of **CIVIL ASSAULT** of the plaintiff, **STEVEN ORTIZ**, by the aforesaid defendants, **CITY**

OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY, STEVEN ORTIZ, sustained personal injury, physical, mental and emotional injuries and plaintiffs demand punitive damages and was otherwise damaged in an amount exceeding the jurisdictional limits of all lower Courts and demands punitive damages against NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY.

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID
954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY ON BEHALF
OF PLAINTIFF, STEVEN ORTIZ

48. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "47", above as if fully set forth hereinafter.

49. Upon information and belief, on or about September 18, 2014 at approximately 10:00 p.m. across the street from 2786 Bainbridge Avenue, City and State of New York, County of Bronx, while the plaintiff was lawfully and properly at said location, the defendant, CITY OF NEW YORK, by and through their employees, defendants, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY, civilly battered the plaintiff, STEVEN ORTIZ, by placing the handcuffs on excessively

tight for an unreasonable and extensive amount of time and in subjecting plaintiff to an improper and humiliating strip search.

50. That at the aforesaid time and place the defendant, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, did batter the plaintiff by subjecting the plaintiff, **STEVEN ORTIZ**, to offensive bodily conduct including, but not limited to, putting the handcuffs on plaintiff's wrists which were excessively tight and conducting an improper, unnecessary and illegal and humiliating strip search of plaintiff.

51. Upon information and belief, the plaintiff, **STEVEN ORTIZ**, never consented to said contact, nor was said contact justified or privileged.

52. Upon information and belief, the aforesaid battery by the defendants upon the plaintiff was made intentionally and with malice, all against the plaintiff's will, and the plaintiff was fully aware of said battery.

53. Upon information and belief, by reason of the **CIVIL BATTERY** of the plaintiff, **STEVEN ORTIZ**, by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, the plaintiff, **STEVEN ORTIZ**, sustained serious and severe personal, physical, mental and emotional

injuries, and plaintiff demand punitive damages, and was otherwise damaged all in an amount exceeding the jurisdictional limits of all lower Courts and plaintiffs demand punitive damages against **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**.

AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY ON BEHALF OF PLAINTIFF, STEVEN ORTIZ

54. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "53", above as if fully set forth hereinafter.

55. Upon information and belief, on or about September 18, 2014 at approximately 10:00 p.m. across the street from 2786 Bainbridge Avenue, City and State of New York, County of Bronx, while the plaintiff was lawfully and properly at said location, the defendants, **CITY OF NEW YORK**, by and through their employee, defendant, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, did intentionally inflict emotional harm upon the plaintiff, **STEVEN ORTIZ** and/or acted with a complete disregard of the substantial probability of causing severe emotional distress to plaintiff, **STEVEN ORTIZ**.

56. Upon information and belief, that at the aforesaid time and place the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE**

OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY, did batter and assault the plaintiff in the presence of the public in an effort to humiliate and otherwise intimidate and embarrass plaintiff by subjecting the plaintiff, **STEVEN ORTIZ**, to offensive bodily conduct and the officers maliciously and fraudulently claimed they found narcotics on plaintiff when, in fact, no narcotics or contraband was found on plaintiff.

57. Upon information and belief, the plaintiff, **STEVEN ORTIZ**, never consented to said contact, nor was said contact justified or privileged.

58. Upon information and belief, the aforesaid intentional infliction of emotional harm by the defendants upon the plaintiff was made intentionally and with malice, all against the plaintiff's will, and the plaintiff was fully aware of same.

59. Upon information and belief, the actions performed by defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY**, were so shocking and outrageous that they exceeded all reasonable bounds of decency and constituted extreme and outrageous conduct.

60. Upon information and belief, there was a causal connection between the outrageous conduct described herein by defendants, **CITY**

OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY, and plaintiff, STEVEN ORTIZ's severe emotional distress and injuries.

61. Upon information and belief, the above actions conducted by the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY, caused severe emotional distress to plaintiff.

62. Upon information and belief, the above actions of defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY, were done with the desire to cause such severe stress to plaintiff under circumstances known to defendants, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY, which made it substantially certain that the result would follow and acted recklessly with utter disregard of the consequences that might follow.

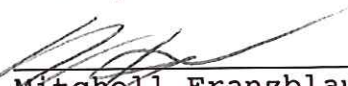
63. Upon information and belief, by reason of the INTENTIONAL INFLICTION OF EMOTIONAL HARM of the plaintiff, STEVEN ORTIZ, by the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE LIEUTENANT MAHONEY, the plaintiff, STEVEN ORTIZ, sustained serious and severe personal, physical, mental and emotional injuries, and plaintiff demand

punitive damages, and was otherwise damaged all in an amount exceeding the jurisdictional limits of all lower Courts and plaintiffs demand punitive damages against **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**.

WHEREFORE, plaintiff demands judgment against the defendants jointly and severally, in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Seventh Cause of Action, plus punitive damages against defendants, **NEW YORK CITY POLICE OFFICER EVAN LAVIN (TAX ID # 954052)** and **NEW YORK CITY POLICE LIEUTENANT MAHONEY**, in the amount exceeding the jurisdictional limits of all lower Courts together with costs, interest and disbursements of this action, and together with such other and further relief as to this Court may seem just and proper.

Dated: Bronx, New York
April 29, 2015

Yours, etc.



Mitchell Franzblau, Esq.

BELOVIN & FRANZBLAU, LLP

Attorneys for Plaintiff(s)

2311 White Plains Road

Bronx, New York 10467-8106

(718) 655-2900

VERIFICATION

State of New York)

ss:

County of Bronx)

Steven Ortiz, being duly sworn, deposes and says: That (s)he is the plaintiff in these proceedings; that (s)he has read and knows the contents of the above VERIFIED COMPLAINT and that the same is true to her/his own knowledge except as to the matters therein stated to be alleged upon information and belief, as to those matters, (s)he believes them to be true.


Steven Ortiz

Sworn to before me on
April 29, 2015


Notary Public

LAURA PANISSIDI
Notary Public, State of New York
No. 01PA5017882
Qualified in BRONX County
Commission Expires September 13, 2017

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX
=====

STEVEN ORTIZ,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER EVAN LAVIN (TAX ID # 954052) and NEW YORK CITY POLICE
LIEUTENANT MAHONEY,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

Belovin & Franzblau, L.L.P.
Attorneys for Plaintiff(s)
2311 White Plains Road
Bronx, NY 10467
718-655-2900

TO: